

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L22-01760
CASE NAME: RALPH BARRIENTOS VS. KIMBERLY E. TOWER
***HEARING ON MOTION IN RE: MOTION FOR ATTORNEY'S FEES; MEMORANDUM OF POINTS AND AUTHORITIES**
FILED BY: BARRIENTOS, RALPH
TENTATIVE RULING:

This matter will be sent to Department 34, to be heard on a different date, which will be provided to the parties.

2. 9:00 AM CASE NUMBER: L23-05788
CASE NAME: BARCLAYS BANK DELAWARE VS. MARTY ALFONSO
***HEARING ON MOTION IN RE: MOTION FOR ENTERING JDGT PURSUANT TO DEF'S DEFAULT UNDER SETTLEMENT & RELEASE AGRMT FILED BY PLTF ON 03/24/2026**
FILED BY: BARCLAYS BANK DELAWARE
TENTATIVE RULING:

Background

Plaintiff filed a Motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Notice of Motion to the Defendant was completed by mail service at a mailing address where

Defendant was personally served with process.

Analysis

The parties entered into a CCP 664.6 agreement, which was signed by Defendant and attached as an Exhibit to this Motion, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$14,871.91, less any credits for payments received, and in addition to any costs.

Defendant made total payments in the amount of \$4,600, and a detail of costs indicates an amount of \$542.90; thus, the judgment amount should be \$10,814.81.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,814.81.

Plaintiff to file order on Motion, as well as submit Judgment.

3. 9:00 AM CASE NUMBER: L23-06350
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ANTHONY NORWOOD
***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION FILED BY PLN ON 1/30/26**
FILED BY: JPMORGAN CHASE BANK, N.A.
***TENTATIVE RULING**

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation. The motion was served by mail to the office of an attorney, yet there is no evidence that this is the attorney

The Motion is unopposed, yet there is no evidence that this is the attorney of record for the Defendant.

Thus, this court finds that the Plaintiff has not properly noticed Defendant of this Motion.

Disposition

Plaintiff's Motion will be continued to 7/14/26, 9am.

Plaintiff to notify Defendant of Motion and the date of the Motion hearing.

Plaintiff to file Order.

4. 9:00 AM CASE NUMBER: L23-06824

CASE NAME: DISCOVER BANK VS. SAGAR BONDADA, JR.

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff had originally filed this Motion to enter judgment pursuant to stipulation for 3/3/26. The motion was served by mail to the address where Plaintiff had served the Defendant with process via substitute service. The same address was attached to the Motion, as part of the 664.6 agreement, underneath the purported signature of the Defendant.

The Motion is unopposed.

However, the date was continued by the court to 4/28/26, 9am.

The court's database does not indicate that the parties were notified of this change.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$8,218.73, less any credits for payments received, plus costs.

Plaintiff requested costs, but did not provide a memo or any detail explaining the cost allocation.

Defendant made total payments in the amount of \$1,700; thus, the judgment amount should be \$6,518.73.

Plaintiff can submit, at a later date, a memo on costs.

Disposition

If at least one of the parties can appear on 4/28/26, at 9 a.m., and demonstrate that the Defendant was served with notice of the hearing today, then the court would be inclined to grant Plaintiff's Motion, and Judgment would be entered in the amount of \$6,518.73.

However, if neither party can appear and make that showing, then this matter will be continued to 7/14/26 9am.

Court will provide notice.

5. 9:00 AM CASE NUMBER: L24-00460

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. TERI CRUZ

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER
JUDGMENT FILED ON 1/30/26 BY PLN**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation. The motion was served by mail to the attorney of record for Defendant.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$5,907.89, less any credits for payments received.

Defendant made total payments in the amount of \$2,810; thus, the judgment amount should be \$3,097.89.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,097.89.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L24-09079

CASE NAME: DISCOVER BANK VS. CIARA OKELLEY

***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY: DISCOVER BANK

***TENTATIVE RULING**

Plaintiff has filed a Motion to enter judgment pursuant to stipulation, but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process, and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/21/26, 9am.

7. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: STRIKE UNAUTHORIZED ATTORNEY APPEARANCE**

FILED BY:

***TENTATIVE RULING**

Defendant has filed a Motion to strike the appearance of attorney for Plaintiff.

The Motion is unopposed; however, proof of mail service was signed by the Defendant.

Background

Defendant argues that the attorney who has been acting on behalf of Plaintiff, a corporation, cannot do so unless there is an agreement between client and attorney that is filed with the court, or entered into the minutes. Defendant's primary authority for this proposition is Section 283 of the CCP.

Analysis

To begin with, the court does not find proper service of the Plaintiff, since the proof of service in the instant matter was signed by the Defendant, which is inappropriate.

However, assuming proper service for the sake of argument, this court is still inclined to deny Defendant's Motion.

There is a presumption under California law that an attorney who appears in court on behalf of a client is presumed to have authority to do so. (*Milrot v. Stamper Medical Corp.* (1996) 44 Cal.App.4th 182, 187.) This presumption is well-settled and may be overcome only by a strong factual showing that the attorney lacked authorization. (*Sarracino v. Superior Court* (1974) 13 Cal.3d 1, 13.) The burden of rebutting the presumption rests with the moving party, and the absence of a retainer agreement or board resolution does not constitute affirmative evidence of lack of authority sufficient to rebut it. (See, e.g., *In re Helen W.* (2007) 150 Cal.App.4th 71, 78 [affirmative evidence of attorney's lack of authorization required; absence of documentation insufficient].) Indeed, an oral statement by counsel that he or she appears on a party's behalf suffices absent proof to the contrary. (*People v. American Bankers Ins. Co.* (1987) 191 Cal.App.3d 742, 745.)

The presumption may be rebutted, and the moving party bears the burden of proof. In the instant matter, Defendant has presented no evidence that counsel lacked authority to represent Plaintiff, only a demand that counsel prove she has it. Yet a demand for proof is not evidence of its absence and therefore falls far short of the strong factual showing required to overcome the presumption.

Disposition

Defendant's Motion is Denied.

Court to file Order.

8. 9:00 AM CASE NUMBER: L25-03538
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. GISELLE GOMEZ
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY: JPMORGAN CHASE BANK, N.A.

***TENTATIVE RULING**

Plaintiff has filed a Motion to enter judgment pursuant to stipulation, but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process, and has not filed any pleadings with the court.

Disposition

Motion continued to 7/21/26, 9am.

Plaintiff to file Order, and to properly notify Defendant of the Motion and the date of appearance.

9. 9:00 AM CASE NUMBER: L25-03680

CASE NAME: BANK OF AMERICA, N.A. VS. SEKANI SMITH

***HEARING ON MOTION IN RE: TO SET ASIDE DISM & ENTER JUDG UNDER STIP**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation.

Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,010.16, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$383.77.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,210.

Plaintiff to file order on Motion, as well as submit Judgment.

10. 9:00 AM CASE NUMBER: L25-04747
CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS
***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED (CONTINUED FROM 1/20/26)**
FILED BY: JPMORGAN CHASE BANK N.A.
***TENTATIVE RULING**

This motion was continued from 3/3/26. But it does not appear that notice was given to any of the parties of this continuance.

Disposition

This will be continued to 7/21/26, 9am.

However, if the parties were aware of the hearing on 4/28/26, and still wish to proceed, they may indicate so by 4/27/26.

11. 9:00 AM CASE NUMBER: L25-06514
CASE NAME: MARINER FINANCE, LLC VS. ROGER NAVARRETTE
***HEARING ON MOTION IN RE: DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF NON-APPEARANCE**
FILED BY: MARINER FINANCE, LLC
TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating mail service to the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**12. 9:00 AM CASE NUMBER: L25-07986
CASE NAME: CAPITAL ONE, N.A. VS. TIFFANY HOLLISTER
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE, N.A.
*TENTATIVE RULING:***

Plaintiff has filed a Motion to enter judgment pursuant to stipulation, but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process, and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/28/26, 9am.

Plaintiff to file Order, and to properly notify Defendant of the Motion and the date of appearance.

**13. 9:00 AM CASE NUMBER: L25-08955
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. CHRISTY JEREMY
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: JEREMY, CHRISTY
*TENTATIVE RULING:***

Defendant filed a Motion, on 2/2/26, to vacate Entry of Default. Entry of Default was filed on 12/4/25.

Notice of this Motion was timely filed on Plaintiff.

The Motion is unopposed.

Background

On 9/11/25, Plaintiff filed a proof of service of process, reflecting that Plaintiff had served Defendant through substitute service. The proof of service reflects that, on 9/5/25, a registered process server delivered the Summons and Complaint ("The Documents") to a "worker at [the] ups store," who accepted service. The process server then mailed The Documents to the address, 2063 Main St., PMB 136, in Oakley, which, as indicated in the proof of service, was the apparent mailing address of the Defendant.

Attached to the proof of service is a Declaration of Reasonable Diligence, but the area where the declarant must list attempts they've made at personal service is blank.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20*. However, there are prerequisites. The plaintiff must first make a good faith effort to personally serve the defendant. *CCP 415.20(b)*. "Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as "reasonable diligence."" *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, Plaintiff has not demonstrated any effort to personally serve Defendant with process.

Disposition

Defendant's Motion is Granted.

Defendant to file the Order.

14. 9:00 AM CASE NUMBER: L25-10048
CASE NAME: WELLS FARGO BANK, N.A. VS. COLIN CATES
***HEARING ON MOTION FOR DISCOVERY AN ORDER DEEMING THE TRUTH OF THE MATTERS**
SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating mail service at the address provided by the Defendant on the Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**15. 9:00 AM CASE NUMBER: N25-0377
CASE NAME: KATHERINE STAUDT VS. UNEMPLOYMENT INSURANCE APPEALS BOARD
HEARING ON DEMURRER TO: FIRST AMENDED PETITION FOR WRIT OF MANDATE
FILED BY: UNEMPLOYMENT INSURANCE APPEALS BOARD**

TENTATIVE RULING:

Petitioner has filed an amended petition for writ of administrative mandamus ("Amended Writ").

Respondent has demurred, contending that Petitioner is time-barred from raising the issue.

Background

On 8/15/24, the California Unemployment Insurance Appeals Board ("Appeals Board") affirmed the decision of an administrative law judge to deny benefits to the Petitioner for a particular period of

time. On 2/20/25, Petitioner filed a petition for a writ of administrative mandate (“Initial Writ”) challenging the Appeals Board’s decision. This Initial Writ was untimely, as the governing statute, Section 410 of the Unemployment Insurance Code, prescribes no more than a 6 month period within which a petitioner must file a challenge. This court granted Respondent’s demurrer to this Initial Writ, on the basis that it was untimely, but gave the Petitioner leave to amend, in which she could attempt to provide a valid excuse for the delay in filing.

In the Amended Writ, Petitioner claims that she incurred a medical procedure on 8/5/24, and that she was admitted into the hospital on 8/18/24, and remained there until the end of the month. After release, Petitioner writes that she was symptomatic, struggling, and “almost re-hospitalized” in September, 2024. She then writes that “resumed personal affairs” as best as she was able “while contending with enduring effects” of the health incident.

Analysis

A demurrer is proper when the pleading reveals the court has no jurisdiction of the subject matter of the cause of action alleged in the pleading. (Code Civ. Proc., § 430.10, subd. (a).) A demurrer may be brought to challenge a legally insufficient petition for writ of mandate. (*SJJC Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052.)

When considering a demurrer, the court should accept as true “all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Zelig v. County of L.A.* (2002) 27 Cal.4th 1112, 1126, quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) A demurrer for lack of jurisdiction is proper where the litigation is untimely under the applicable statute of limitations. (Code Civ. Proc., § 430.10, subd. (a).)

California courts have long held that a responding party may also demur to an untimely complaint on the grounds that the complaint does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e); *Brown v. Martin* (1864) 25 Cal. 82, 93.) A demurrer lies where the untimeliness of the lawsuit clearly and affirmatively appears on the face of the complaint. (*Coalition for Clean Air v. City of Visalia* (2012) 209 Cal.App.4th 408, 420.)

When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The burden rests on the plaintiff to prove the possibility of amendment. (*Id.*)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman’s Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. (*Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.)

Unemployment Insurance Code (“UIC”) section 410 imposes a clear six-month statute of limitations for challenging a CUIAB decision, requiring initiation of a writ action “not later than six months after

the date of the decision of the Appeals Board.” (AR, p. 146; see *Tarkington v. Cal. Unemp. Ins. Appeals Bd.* (2009) 172 Cal.App.4th 1494, 1502; Unemp. Ins. Code, § 410 [“[J]udicial review from an appeals board decision shall be exercised not later than six months after the date of the decision of the appeals board or the date on which the decision is designated as a precedent decision, whichever is later”].) If there is a clear bar to an action by an applicable statute of limitations, a petitioner ““must plead facts which show an excuse, tolling, or some other basis for avoiding the statutory bar”” to avoid dismissal of their complaint for untimeliness. (*Tarkington, supra*, 172 Cal.App.4th at p. 1503 quoting *Ponderosa Homes, Inc. v. City of San Ramon* (1994) 23 Cal.App.4th 1761, 1768.)

In the instant matter, Petitioner’s Initial Writ was clearly filed beyond the 6 month deadline, which, after factoring in the holiday on 2/17/25, gave her until 2/18/25, to file. She was late.

And Petitioner’s justification for this late filing, that she was unwell, doesn’t justify this failure. Even assuming that the duration of her sickness was true, she still had over four months to file her petition.

Allowing Petitioner leave to amend, again, is futile. There is no reasonable possibility, at this point, that Petitioner can overcome this defect.

Disposition

Respondent’s Demurrer is Sustained.

Petitioner will not be given leave to amend.

Respondent to file Order.